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Case Number: 24STCV27075 Hearing Date: August 10, 2026 Dept: 514

Aldape v. Toyota Motor North America

24STCV27075

Motion for Terminating Sanctions or, in the alternative, for an Order Enforcing the March 6, 2026 Order and Further Monetary Sanctions

Tentative Ruling

The motion is denied.

Background

This lawsuit arises out of injuries that Plaintiff alleges that he sustained in connection with two vehicle repossessions.

On October 16, 2024, Leonardo Aldape ("Plaintiff") filed the complaint in this action against Toyota Motor North America, Inc.; Toyota Motor Corporation; Toyota of Downtown L.A.; American Recovery Service; Benchmark Asset Resolution, Inc.; Bernal Louie Ray; and Does 1 through 100.

On December 26, 2024, Toyota Motor Credit Corporation (erroneously sued as Toyota Motor North America, Inc. and Toyota Motor Corporation) ("TMCC") filed an answer.

On February 3, 2025, American Recovery Service Incorporated filed an answer.

On February 18, 2025, Benchmark Asset Resolution, Inc. (“Benchmark”) and Louie Ray Bernal (“Bernal”) filed an answer.

On March 26, 2025, Plaintiff amended his complaint to name Patrick K. Willis Company, Inc. as Doe 1.

On April 29, 2025, Patrick K. Willis Company, Inc. dba American Recovery Service (“Willis”) filed a cross-complaint against Benchmark, AB Recovery (“AB”), and Roes 1 through 50. Willis subsequently filed a First Amended Cross-Complaint on June 11, 2025.

On April 30, 2025, Willis filed an answer to the complaint.

On May 29, 2025, LAD-T, LLC dba Toyota of Downtown L.A. (“LAD-T”) filed a cross-complaint against Willis, Benchmark, AB, and Roes 1 through 50. On June 30, 2025, Benchmark and Willis each filed an answer to the cross-complaint.

On June 4, 2025, the Court, at the request of Plaintiff, dismissed America Recovery Services without prejudice.

On June 10, 2025, the Court sustained the demurrer of LAD-T to the complaint with leave to amend.

On July 21, 2025, Plaintiff filed the (operative) First Amended Complaint (the “FAC”). In the FAC, Plaintiff asserts causes of action for: (1) breach of the peace under Commercial Code section 9609; (2) false imprisonment; (3) assault; (4) battery; (5) kidnapping under Penal Code section 207(A); (6) intentional infliction of emotional distress; (7) negligence; (8) child endangerment under Penal Code section 273(A); (9) violation of Business & Professions Code section 17220, et seq.; and (10) violation of the Bane Act, Civil Code section 52.1.

On July 31, 2025, AB filed a cross-complaint against Moes 1 through 25.

On October 13, 2025, the Court sustained the demurrer of LAD-T to the FAC without leave to amend.

On March 6, 2026, the Court granted AB's motions to compel Plaintiff to respond to discovery.

On May 4, 2026, the Court, at the request of Plaintiff, dismissed Plaintiff's entire FAC without prejudice.

On June 2, 2026, AB filed this motion for terminating sanctions, or in the alternative, for an order enforcing the March 6, 2026 Order and for further monetary sanctions.

Plaintiff filed an opposition on June 22, an AB filed a reply on August 3.

and On June 22, 2026, Plaintiff filed an opposition.

On August 3, 2026, AB Recovery filed a reply.

Although Plaintiff's complaint has been dismissed, the cross-complaints are still pending. Trial is set for February 22, 2027.

Legal Standard

When a party fails to obey an order compelling answers to interrogatories, "the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7." (Code Civ. Proc., § 2030.290, subd. (c).)

When a party fails to obey an order compelling responses to requests for production, "the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to, that sanction, the court may impose a monetary sanction under

Chapter 7." (Code Civ. Proc., § 2031.300, subd. (c).)

In Chapter 7 of the Civil Discovery Act, section 2023.030 provides for monetary, evidence, issue, and terminating sanctions for any "misuse of the discovery process," "[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title." A "misuse of the discovery process" is defined to include (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

The Civil Discovery Act provides for an escalating and "incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination." (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.) Discovery sanctions should be appropriate to and commensurate with the misconduct, and they "should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.) "If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse." (Ibid.; see also, e.g., Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.)

Terminating sanctions should be used sparingly. (Doppes, supra, 174 Cal.App.4th at p. 992; R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal. App. 4th 486, 496.) "Although in extreme cases a court has the authority to order a terminating sanction as a first measure, a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective." (Lopez, supra, 246 Cal.App.4th at p. 604.) But where discovery violations are "willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Doppes, supra, 174 Cal.App.4th at p. 992.) Repeated and willful violations of discovery orders that prejudice the opposing party may warrant a terminating sanction. (Creed-21 v. City of Wildomar (2017) 18 Cal.App.5th 690, 702; Los Defensores, Inc. v. Gomez (2014) 223 Cal.App.4th 377, 390; Biles v. Exxon Mobil Corp. (2004) 124 Cal.App.4th 1315, 1327; Lang v. Hachman (2000) 77 Cal.App.4th 1225, 1246; Collisson X Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1617-1622.)

The primary purpose of discovery sanctions is to obtain compliance with the Civil Discovery Act and the Court's orders. It is not to punish. (Newland v. Super. Ct. (1995) 40 Cal.App.4th 608, 613; Ghanooni v. Super Shuttle of Los Angeles (1993) 20 Cal.App.4th 256, 262.) A discovery sanction should not create a "windfall" for a party or place a party in a better position than it would have been if the opposing party had simply complied with its obligations under the Court's orders and the Civil Discovery Act. (Rutledge v. Hewlett-Packard Co. (2015) 238 Cal.App.4th 1164, 1194; see also 2 Weil & Brown, California Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026), ¶¶ 8:2214-2220.)

Discussion

On March 6, 2026, the Court ordered Plaintiff to respond to AB's form interrogatories, special interrogatories, and requests for production. Plaintiff has not complied. AB now seeks terminating sanctions; an order enforcing the Court's prior order dated March 6, 2026; and/or further monetary sanctions.

Terminating Sanctions

At the request of Plaintiff, the Court dismissed Plaintiff's entire FAC on May 4, 2026. That voluntary dismissal was without prejudice. AB now seeks the imposition of terminating sanctions, presumably as a step toward a dismissal with prejudice.

The Court, in its discretion, denies AB's request. The goal of discovery sanctions is not to punish. The primary purpose of discovery sanctions is to obtain compliance with the Court's orders and the

requirements of the Civil Discovery Act.
Terminating sanctions can be used to protect a party from unfairness or surprise at trial when the opposing party has failed to comply with his obligations under the Civil Discovery Act.
Neither purpose would be served under these circumstances.

Enforcement of March 6, 2026 Order

AB asks for an order enforcing the prior discovery order of the Court. For two independent reasons, such an order is unnecessary. First, the Court has already made a substantive order requiring Plaintiff to do certain things; a second order requiring a party to comply with an existing order would be duplicative and unnecessary even if Plaintiff had not dismissed the action.
Second, there is no need for AB to obtain the requested discovery from Plaintiff now that Plaintiff has dismissed his action.

The request is denied.

Monetary Sanctions

Finally, AB asks for additional monetary sanctions. The Court has already ordered Plaintiff to pay monetary sanctions to AB; if those sanctions have not been paid, they are (over) due and payable. The dismissal does not eliminate or render moot an order entered before the dismissal requiring a party to pay sanctions.
Further monetary sanctions, at this point, would serve no purpose other than to punish Plaintiff.

The request is denied.

Conclusion

The Court DENIES the motion of Defendant AB Recovery, Inc.. for terminating sanctions, for an order enforcing a prior order, and for monetary sanctions.

Moving party is ordered to give notice.